

December 7, 2011



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11281
(THIRTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of uninsulated DOT Specification cargo tanks and portable tanks containing certain Class 8 and Division 6.1 materials, which are toxic by inhalation. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Column 7 and Special Provisions B14 and TP38 in that alternative packaging is authorized.
5. BASIS: This special permit is based on the application of E. I. DuPont de Nemours & Company dated May 10, 2011 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Chlorosulfonic acid	8	UN1754	I, Hazard Zone B
Dimethyl sulfate	6.1	UN1595	I, Hazard Zone B

7. SAFETY CONTROL MEASURES:a. PACKAGING - Prescribed packagings are:

(1) Specification MC 312, MC 330, MC 331, and DOT 412 cargo tanks, and Specification DOT 51 and IM 101 portable tanks which do not meet the insulation requirements of § 172.101, Column 7 Special Provisions B14. Prescribed tanks are constructed of Type 316L stainless steel. Thickness for tank shell and heads must be the greater of 0.350 inch or the thickness required for a tank with a design pressure at least equal to 1.5 times the vapor of the lading at 115°F.

(2) UN Specification portable tanks, Code T20 or T22 which do not meet the insulation requirements of § 172.101, Column 7 Special Provisions TP38. Prescribed tanks are constructed of Type 316L stainless steel. Thickness for tank shell and heads must be the greater of 0.350 inch or the thickness required for a tank with a design pressure at least equal to 1.3 times the vapor of the lading at 115°F.

b. TESTING - Packagings must be tested, retested, and inspected in accordance with the requirements for the appropriate DOT Specification cargo tank or portable tank.

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c. Drivers must be trained and instructed to, when possible, move their vehicle away from the site of an accident involving a loss of fuel or fire, provided no lives will be endangered by moving their vehicle.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each cargo tank must be plainly marked on the curb side near the front and each portable tank must be marked on both sides near the center in letters and numbers at least 2 inches high on a contrasting background, "DOT-SP 11281".

9. MODES OF TRANSPORTATION AUTHORIZED: Portable tanks by motor vehicle, rail and cargo vessel. Cargo tanks by motor vehicle only.

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each motor vehicle or cargo vessel used to transport packages covered by this special permit.

b. Each carrier involved with the transportation of the materials authorized under the terms of this special permit must have a "Satisfactory" safety rating, as prescribed in Part 385 of 49 CFR.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by Federal hazardous materials transportation laws 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "hazmat employee" as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SS